

discovery sought information that was difficult to obtain; (5) whether the answers supplied were evasive and incomplete; (6) the number of unanswered questions remaining; (7) whether the unanswered questions are material to the claim or defense; (8) whether the responding party has acted in good faith and reasonable diligence; (9) the existence of prior orders compelling discovery and the answering party's response; (10) whether the party was unable to comply with the prior orders; (11) whether an order allowing more time to answer would enable the answering party to supply the necessary information; (12) whether a sanction short of dismissal or default would be appropriate. (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 796-797.) A prerequisite to the imposition of the dismissal sanction is that the party has willfully failed to comply with a court order. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 487.) Terminating sanctions should only be ordered when there has been previous noncompliance with a rule or order, and it appears a less severe sanction would not be effective. (*Link v. Cater* (1998) 60 Cal.App.4th 1315, 1326.)

Discovery sanctions are issued to remedy discovery abuse, not to punish the offending party. (*Williams v. Russ* (2008) 167 Cal.App.4th 1215, 1223.) The sanctions should be proportionate to the offending party's misconduct. (*Id.*) "[W]here a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanctions." (*Mileikowsky v. Tenet Healthsystem* (2005) 128 Cal.App.4th 262, 279-280.)

Here, the discovery at issue, Plaintiff's deposition, has taken place. Accordingly, terminating, issue and evidentiary sanctions are inappropriate at this time. However, monetary sanctions are appropriate. Plaintiff fails to provide any reason for why she failed to appear at deposition. Defendant fails to provide a breakdown of the hourly rate and hours spent on the motion. **The court awards a lesser amount of \$1,110 (\$350 x 3.0 hours + \$60 filing fee).**

2.

CASE #	CASE NAME	HEARING NAME
CVRI2400337	ROUSHANZAMIR vs SCHWICHTENSE	MOTION FOR AND ORDER STAYING EXECUTION AND ENFORCEMENT OF THE JUDGMENT ENTERED

Tentative Ruling:

Moving party: Plaintiff Ali Roushanzamir
Responding party: Defendants Deanna Mae Hopkins, Derek Hardister, and Cammy Hardister

Ali Roushanzamir ("Plaintiff") alleges that Anglin Mae Hopkins, Deanna M. Hopkins, Hopkins D.M. Living Trust, Living Trust Hopkins-Anglin Family Trust, Living Trust Hopkins-Anglin TBD Trust (collectively "Hopkins Defendants"), are the owners of 7011 El Cerrito Road. Plaintiff alleges that Hopkins Defendants have abandoned the property and have acted in a way that obstructs Plaintiff's ingress/egress to do

construction on his property, located at 3350 State Street in Corona. Plaintiff alleges he has an easement on Hopkins Defendants' property, and their conduct violates his easement rights. Plaintiff is building a \$25 million housing development project on his property.

Plaintiff also names as defendants Terry S. Schwichtenberg, Derek Hardister, Cammy Hardister, and Ortega Felipe M. as recorded owners of other nearby properties, which are part of the easement. Plaintiff alleges the Defendants built a fence about eight feet into the public road. Defendants have also allowed garbage to accumulate causing a nuisance. Plaintiff complained to the city, but nothing was done. Plaintiff filed his operative Second Amended Complaint ("SAC") on 12/5/24. It alleges causes of action for: (1) private nuisance, (2) negligence, (3) interference, and (4) quiet title.

On 8/20/25, the Court granted Deanna Mae Hopkins, Derek Hardister, and Cammy Hardister's (collectively "Moving Defendants") motion for terminating sanctions. The matter was dismissed as to these defendants with prejudice.

Plaintiff seeks an order staying execution and enforcement of the judgment entered in favor of the Moving Defendants. He contends that under CCP § 916(a), there is a stay in place that prevents Moving Defendants from enforcing the judgment. He asserts that Moving Parties have moved forward with enforcing the judgment.

In opposition, Defendants contend that there is no appeal of the judgment. They argue that Plaintiff has only appealed the Court's ruling on three discovery motions. They assert that under CCP § 917.1, a stay is not proper because Plaintiff has not posted an undertaking. Moving Defendants assert that they have only recorded an abstract of judgment. As such, post judgment activity has been minimal.

As of 7/28/26, no reply could be located on eCourt.

Analysis

This motion seeks to stay the enforcement of the judgment because an appeal of said judgment is pending. However, this assertion does not appear to be correct. The court could only find one notice of appeal in the docket. This was filed 11/14/24. It appears to pertain to three rulings to discovery motions, which include the award of monetary sanctions. It should be noted that the Court's order regarding discovery is not appealable but the order regarding sanctions is under CCP § 904.1(a)(12) and (b). (CCP §§ 904, 904.1, 904.2, 904.3, and 904.5.)

"As a general rule (the automatic stay rule), the perfecting of an appeal automatically stays proceedings in the trial court both upon the judgment or order appealed from, and upon the matters embraced therein or affected thereby, including enforcement of the judgment or order." (*Dowling v. Zimmerman* (2001) 85 Cal.App.4th 1400, 1427-1428.) However, the automatic stay rule does not apply to all appeals. "[A] trial court judgment or order for the payment of money is not stayed by the perfecting of

an appeal unless an undertaking is given.” (*Sarkany v. West* (2022) 82 Cal.App.5th 801, 807.) This is known as the money judgment exception to the automatic stay rule.

Plaintiff has appealed the Court's order regarding discovery sanctions. This is an order for the payment of money. Plaintiff provides no evidence that an undertaking has been made. As such, **the request for stay is denied.**

The Court notices that there are four other Defendants, **TERRY SCHWICHTENSE, ORTEGA FELIPE, TERRY S. SCHWICHTENBERG, and FELIPE M. ORTEGA.** No proof of service has been filed as to any of the named Defendants as to the Second Amended Complaint filed on 12/5/2024. The Court sets the Matter for a Case Management Conference on **10/8/2026** at 8:30 a.m. in Department 6.

The Matter is also set for an OSC as to why sanctions of up to \$1,500 or a dismissal should not be imposed for the Plaintiff's failure to timely file proof of service on all defendants (CRC 3.110.(b)&(f)) set for **10/8/2026 at 8:30 a.m. in Department 6.**

3.

CASE #	CASE NAME	HEARING NAME
CVRI2400469	MENACHEM LAND, LLC vs LINKAGE FINANCIAL GROUP, INC.	MOTION FOR LEAVE TO INTERVENE

Tentative Ruling:

This motion is unopposed. Motion to intervene is granted. Moving party to give notice of ruling. Moving party to file and serve an Answer/responsive pleading within 30 days of this order.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2401587	AVILA vs RAMIREZ II	DEMURRER ON 1ST AMENDED COMPLAINT

Tentative Ruling:

The Demurrer is unopposed. Demurrer is sustained without leave to amend. Moving party to give notice of ruling. Proposed order submitted has been signed by the Court.

The CMC is continued to 9/14/2026.